

25VECV04055 25VECV04055

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-28

Motion: PLAINTIFF'S MOTION FOR ATTORNEY FEES

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Case Number: 25VECV04055 Hearing Date: August 28, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

DAMIEN JORDAN,

an individual,

Plaintiff,

vs.

GENERAL MOTORS LLC, a Delaware

Limited Liability Company; CASA DE

CADILLAC, a California Corporation dba

CASA DE CADILLAC BUICK GMC

SHERMAN OAKS; and DOES 1 through

25, inclusive,

Defendants.

CASE NO: 25VECV04055

[TENTATIVE]

ORDER RE:

PLAINTIFF'S

MOTION FOR ATTORNEY FEES

Dept. W

8:30 a.m.

August 28, 2026

[TENTATIVE] ORDER: The Court GRANTS

Plaintiff's Motion for Attorney Fees, in the modified amount of \$16,549.76.

Background

This

is a lemon law case. Plaintiff Damien Jordan alleges that on August 30, 2024, he entered into a lease agreement for a 2024 Hummer EV, manufactured by Defendant General Motors, LLC. Plaintiff alleges that the vehicle exhibited numerous defects that could not be cured after a reasonable number of repair attempts.

On July 21, 2025, Plaintiff brought suit against Defendant, alleging four violations of the Song-Beverly Act, as well as negligent repair.

On June 12, 2026, Plaintiff filed a notice of settlement of the entire case and moved for attorney fees and costs.

Now, the Court hears Plaintiff's motion for attorney fees.

Discussion

Plaintiff requests a total of \$59,029.76 in attorney fees and costs.

(Mot. for Attorney Fees, pp. 1:28-2:4.) Specifically, Plaintiff requests \$38,760 in reasonable fees, \$16,880 as a 1.5x lodestar multiplier, and \$3,389.76 in costs. (Ibid.)

Plaintiff bases their request for fees on the fee-shifting provision of the Song-Beverly Act, which states that a prevailing buyer can, “recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution.” (Civ. Code § 1794(d).)

Plaintiff also asserts that the settlement agreement between the parties gives them the right to recover fees and costs by motion. (Mot. for Attorney Fees, p. 7:7-9.) Notably, Plaintiff does not attach a copy of this settlement agreement. (See generally, Mot. for Attorney Fees.) However, Defendant does not dispute the existence or terms of the agreement in their Opposition. (See generally, Opp.) Thus, the Court will proceed and analyze this motion on the merits.

i)

Fee Motion Analysis

“[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. ... The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” ((PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095 [internal citations omitted]); (see Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 818 [applying the lodestar method to determine attorneys’ fees in Song-Beverly action].) Thus, the Court will analyze the reasonableness of: i) Plaintiff’s lodestar multiplier request, ii) Plaintiff’s hourly rates, iii) Plaintiff’s hours, and iv) Plaintiff’s costs.

A. Lodestar Multiplier

First, the Court will analyze Plaintiff’s request for a 1.5x lodestar multiplier (\$16,880.00). While the baseline lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including “(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the

contingent nature of the fee award[;]" and (4) the success achieved. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.) "[A] trial court should award a multiplier

for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138-1139.)

The Court finds that the facts of this case don't support the application of a multiplier. There is no indication that this lemon law case was complex or presented any challenging legal issues, particularly considering that Plaintiff's counsel specializes in these types of cases. Additionally, there is no evidence that Plaintiff's counsel was precluded from taking other cases because of the nature of this case. Lemon Law firms take on these cases hundreds at a time, so the opportunity cost of taking on one more is negligible.

Nor is the success achieved by Plaintiff's counsel exceptional. This case was filed in 2025, and settled in 2026, with zero substantive motion practice occurring. The Court further notes that counsel's skill and experience is also being factored into the reasonableness of their fees. Thus, it would be unreasonable to award an enhancement here. (See Holguin v. Dish Network LLC (2014) 229 Cal.App.4th 1310, 1333 ["Where, as here, the court determines that the lodestar itself constitutes a reasonable fee for the action at issue, no enhancement is warranted."].)

For these reasons, the Court declines to grant this multiplier.

B. Plaintiff's Hourly Rates

Second, the Court will evaluate the reasonableness of Plaintiff's hourly rates. Plaintiff bills for the time of a single lawyer – Yasha Ahoubim, at an hourly rate of \$600 in 2025, and then \$650 in 2026. (Ahoubim Decl. ¶ 15; see also Ahoubim Decl. Ex. A.)

"[T]he court's discretion in awarding attorney fees is ... to be exercised so as to fully compensate counsel for the prevailing party for services reasonably provided to his or her client." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th

359, 395 [emphasis added].) The trial court may reduce the award where the fee request appears unreasonably inflated, such as where the attorneys' efforts are unorganized or duplicative. (Serrano v. Unruh (1982) 32 Cal.3d 621, 635, fn. 21.) Moreover, courts have repeatedly stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. (East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.)

Here, the Court has determined that Plaintiff's requested rates are too high. The Court does not believe that high-volume, boilerplate lemon law cases like this one justify rates as high as \$650 an hour. The Court has seen enough suits brought under Song-Beverly to know that every paper filed in these cases, from the Complaint, to the discovery requests, to the Demurrer oppositions are copied and pasted from templates, with minimal personalization to each client. What's more, the issues presented in this case were not novel or complex. Thus, there was no special skill or insight required to litigate this case. Moreover, no motion practice occurred in this case. Thus, charging significantly higher rates is not reasonable, as this work could have been done by a much less experienced attorney. (See Mikhaeilpoor v. BMW of North America (2020) 48 Cal.App.5th 240, 256 [Court of Appeals held that it was not an abuse of discretion for the trial court to reduce the hourly rates of every lawyer in a lemon lawsuit to \$350.00].)

For these reasons, the Court reduces the hourly rates of Plaintiff's attorney Yasha Ahoubim to \$350.

C. Plaintiff's Hours Billed

Next, the Court will assess the reasonableness of the hours billed by Plaintiff.

The Song-Beverly Act, "requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary

charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470 [quoting Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104].)

Here, Plaintiff bills for an astonishing 54.4 hours of time in a case with zero motion practice. (Ahoulim Decl. Ex. A.) The Court takes note of multiple billing requests.

1) Complaint Billing

First, Plaintiff bills 1.9 hours for, “Drafted, Edited, Reviewed, and Filed Plaintiff’s Complaint, Civil Case Cover Sheet, Addendum, and Summons.” (Ahoulim Decl. Ex. A, p. 1.) The Court takes two issues with this entry. First, this entry includes time billed for “filing” the Complaint and other documents, which is an administrative task, inappropriate for billing at lawyer rates. Second, having reviewed the Complaint in this case, the Court does not find the hours requested for drafting it reasonable. Plaintiff’s Complaint is a boilerplate template motion. (See generally, Compl.) It contains essentially no specific facts beyond the original lease date of the vehicle. (Compl. ¶ 9.) Thus, could not have taken multiple hours to draft.

For these reasons, the Court reduces these requested hours by 1.4, for a total of 0.5.

2) Initial Disclosures

Next, Plaintiff bills 5.3 hours for reviewing Defendant General Motors LLC’s initial disclosures. (Ahoulim Decl. Ex. A, p. 2.) The Court takes issue with this entry because initial disclosures in lemon law cases are statutorily designated and involve the production of standard documents like owner’s manuals, warranty booklets, and boilerplate discovery responses. (See CCP § 871.26.) Plaintiff’s counsel has asserted that he is a skilled and experienced lemon law attorney. (Ahoulim Decl. ¶ 14.) Thus, he should be intimately familiar with these initial disclosures. Therefore, the Court finds this request for 5.3 hours excessive.

For these reasons, the Court reduces these requested hours by 4, for a total of 1.3.

3) Mediation

Next, Plaintiff bills 5.7 hours for reviewing and drafting a mediation brief, 0.8 hours to “prepare client” for the mediation, and 4.5 hours attending the mediation, and then communicating with the client afterwards, for a total of 11 hours billed. (Ahoulim Decl. Ex. A, p. 5.) The Court takes no issue with these entries. While Defendant is correct in their Opposition that initial mediation on these matters is not complex and often involves template documents (see Opp. p. 6), the Court believes that mediation is a valuable and efficient tool for resolving cases like this. Here, it appears from the timing of the mediation – January of 2026 – and subsequent settlement discussions, that mediation was helpful in resolving this case out of court. (Ahoulim Decl. Ex. A, p. 5.) For these reasons, the Court declines to strike these hours.

4) Fee Motion

Finally, Plaintiff bills 8.7 hours for the initial drafting of the instant Motion for Attorney Fees. (Ahoulim Decl. Ex. A, p. 6.) Additionally, Plaintiff requests another \$5,000 (approximately 7.7 hours) in anticipated fees for review of the Opposition, drafting of the Reply, and attendance at this hearing. (Ahoulim Decl. ¶ 19.) The Court takes issue with Plaintiff billing so many hours for the instant motion. Having reviewed Plaintiff’s Motion for Attorney Fees, the Court notes that it, like every other lemon law fee motion it sees, is clearly copy and pasted from a template, with minimal personalization of case specific analysis. (See generally, Mot. for Attorney Fees.) Aside from the introduction section, the vast majority of this motion is legal boilerplate. (Mot. for Attorney Fees, pp. 4:17-12:18.) Another illustration of this lack of specifics is the fact that Plaintiff did not attach a copy of the settlement agreement to this motion. (See generally, Mot. for Attorney Fees.) Thus, the Court does not find that 8.7 hours is an accurate reflection of Plaintiff’s actual time expended on this motion. For these reasons, the Court reduces this request by 6.7 hours, to a total of 2.0.

By contrast, the majority of Plaintiff’s Reply addresses specific analysis of Defendant’s Opposition arguments. (Reply, pp. 1:12-6:10.) Thus, more hours of billing are

appropriate. That being said, the Court still finds Plaintiff's request of \$5,000 in fees (approximately 7.7 hours in billing at a rate of \$650) is still excessive for the preparation of a Reply in a lemon law case. As explained above, Plaintiff's attorney is an experienced lemon law lawyer, meaning he has drafted many similar Replies before. For these reasons, the Court reduces this request of approximately 7.7 hours by 4.7, to a total of 3.0.

5) Summary

In summary, this Court has reduced Plaintiff's requested hours by 16.8, for a total of 37.6.

D. Plaintiff's Costs

Finally, the Court will evaluate Plaintiff's request for \$3,788.62 in costs. Under CIV § 1794(d), when a buyer prevails in a Song-Beverly action, "the buyer shall be allowed . . . to recover . . . the aggregate amount of costs and expenses . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (CIV § 1794(d).) Thus, Plaintiff is entitled to recover any costs they reasonably incurred as part of this litigation.

Defendant argues that all of these costs should be denied because Plaintiff failed to file a memorandum of costs, or any supporting documentation for these costs. (Opp. p. 10:1-4.) The Court disagrees. While an initial memorandum of costs acts as "prima facie evidence" of a plaintiff's costs, it is not the exclusive method for verifying costs incurred. Here, Plaintiff provided the sworn declaration of Yasha Ahoubim, who attests to the authenticity of the list of costs attached to the motion. (Ahoubim Decl. ¶ 8; see also, Ex. A.) Having reviewed these verified costs requests, the Court sees nothing facially objectionable about any of them. Given that Defendant raised no specific objections to these costs, Court sees no reason to reduce them. (Opp. pp. 9:15-10:4.)

For these reasons, the Court declines to strike any of Plaintiff's \$3,389.76 in costs.

E. Summary

In summary, the Court declines to apply a 1.5 lodestar multiplier to

this case. Additionally, the Court reduces the hourly rate of Plaintiff's attorney to \$350. Next, the Court reduces the total hours billed by Plaintiff from 54.4 to 37.6 hours. Based on Plaintiff's adjusted hours and hourly rates, the Court recalculates Plaintiff's reasonable attorney fees at \$13,160.00. Finally, the Court grants Plaintiff's request for \$3,389.76 in costs.

In total, the Court GRANTS Plaintiff's Motion for Attorney Fees in the modified amount of \$16,549.76.

Conclusion

The Court GRANTS Plaintiff's Motion for Attorney Fees, in the modified amount of \$16,549.76.

IT
IS SO ORDERED, Plaintiff TO GIVE NOTICE.

August 28, 2026

Judge of the Superior Court